

Indian Wireless Telegraphy (Demonstration Licence) Rules, 1962

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Indian Wireless Telegraphy (Demonstration Licence) Rules, 1962

UNION OF INDIA

India

Indian Wireless Telegraphy (Demonstration Licence) Rules, 1962

Rule INDIAN-WIRELESS-TELEGRAPHY-DEMONSTRATION-LICENCE-RULES-1962 of 1962

Published on 17 August 1962

Commenced on 17 August 1962

[This is the version of this document from 17 August 1962.]

[Note: The original publication document is not available and this content could not be verified.]

Indian Wireless Telegraphy (Demonstration Licence) Rules, 1962

Published vide Notification Gazette of India, 1963 Part 2, Section 3(i), p. 1287.

1717.

G.S.R. 1165, dated the 17th August, 1962. - In exercise of the powers conferred by sections 4 and 7 of the Indian Telegraph Act, 1885 (

13 of 1885

) and in supervision of all existing orders on the subject, the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Indian Wireless Telegraphy (Demonstration Licence) Rules, 1962.

(2)

They shall come into force with effect from the [date to be notified in the Gazette.]

[1.2.1963, vide G.S.R. 29, dated 20.12.1962]

2.

Definitions.

- In these rules, unless the context otherwise requires,

(a)

"dealer" means any person who deals in, or manufactures for gain, wireless sets;

(b)

"demonstration" means the establishment, maintenance or working of a wireless set with a view to its sale;

(c)

"form" means a form appended to these rules;

(d)

"Wireless set" means a wireless transmitter, wireless receiver, or a wireless transmitter incorporated in a single unit with a wireless receiver, but does not include a broadcast or television receiver set.

3.

Licence required for demonstration.

- No person shall demonstrate a wireless set except under and in accordance with the terms and conditions of a licence granted under these rules.

4.

Application for Licence.

(1)

Any dealer who holds a possession licence granted by the Postmaster General of the Posts and Telegraphs Circle concerned under the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

), may apply to the Central Government in Form A for the grant of a licence under these rules.

(2)

No licence shall be granted under these rules unless a fee of Rs. 15 in the case of a licence valid for three months only or of Rs. 60 in the case of a licence valid for one year has been paid into the Reserve Bank of India or a Government Treasury to the credit of the account Head "LII-Misc., Receipts of the Wireless Planning and Coordination Organisation-Licence Fee".

5.

A licence granted under these rules shall be in Form B and shall be valid :-

(a)

for the period specified therein which shall be either three months or one year, and

(b)

for one State only, unless the Central Government grants special permission for the use of the licence in any other State. 1

6.

Licence not transferable.

- A licence granted under these rules shall not be transferable.

7.

Conditions of Licence.

- Every licence granted under these rules shall also be subject to the following conditions, namely :

(a)

All demonstrations shall be carried on only on frequencies and emissions specified in the licence;

(b)

all demonstrations shall be carried on between such hours as may be specified in the licence;

(c)

the licensee or his authorised representative shall remain with the apparatus during the demonstration;

(d)

any officer authorised by the Central Government in this behalf shall have the right to be present during the demonstration;

(e)

the wireless set shall not be used for any purpose other than bona fide demonstration.

(f)

the demonstration shall be carried on without causing interference to the working of any other wireless station and shall be closed down on demand made in this behalf by any wireless telegraph station licensed or worked by the Central Government or under its authority.

8.

Indemnity.

- The licence shall indemnify the Central Government against all actions, claims and demands which may be brought or made by any person in respect of any injury arising from any act done in pursuance of the licence.

9.

Cancellation of a licence.

- A licence granted under this rules may be cancelled for breach of any of the conditions of the licence after giving the licensee a reasonable opportunity to make his objections.

10.

Cancellation in an emergency.

- If the Central Government is satisfied that on account of public emergency or in the interest of public safety, it is necessary to do so, it may, in the case of a specified individual licensee, by notice in writing and in any other case by notice published in the Gazette of India addressed to all holders of licences, cancel the licence or all such licenses.

11.

No refund of cancellation.

- Where any licence is cancelled under these rules, the fee paid therefor shall not be refundable.

Form 'A'

(See Rule 2)

Application Form For A Licence To Demonstrate A Wireless Transmitter And/or A Receiver Set

(To be submitted in duplicate)

1. Name of Applicant (in block capitals)

Address

2. Details of Dealer's Possession License No

Date

Granted by

Expiring on

3. Purpose for which licence is required.....

4. Particulars of apparatus to be demonstrated.....

The number and technical details of the sets.....together with, if possible, the relevant technical literature.

5. The place or places where the demonstration will be conducted

6. The date/dates and hour/hours of the demonstrations in Indian Standard Time

7. The probable duration of the demonstrations

8. The maximum power of the transmitter

9. The frequency or the frequencies (preferably the specific frequencies) on which the demonstration will be conducted

Declaration

I/We undertake to observe the conditions of the licence and hereby certify that the apparatus herein described will be demonstrated in accordance with the provisions of the license.

Signature of the applicant,

Date

NOTE. - (1) The copies of this application, when completed, should be forwarded to the Wireless Adviser to the Government of India, Ministry of Transport and Communications (Deptts. of Commns. and Civil Aviation), New Delhi.

(2)

A fee of Rs. 15 per set for a period of 3 months or Rs. 60 for a period of one year shall be payable on demand.

Form 'B'

(See Rule 2)

Demonstration Licence No.

Dated

Indian Telegraph Act, 1885

License to demonstrate a wireless transmitter set and/or a receiver set.

Mr/Messrs.....of.....Holder/holders of Dealer's Possession License Nodated.....issued, byexpiring on.....and who is/are licensed under the Indian,Wireless Telegraphy Act, 1933, as a dealer/dealers, in, or manufacturer(s) of Wireless telegraphy apparatus is/are hereby licensed to establish, maintain and work wireless transmitting and receiving apparatus, the details of which are given below, for demonstration purposes for a period ofending onat the following address or within the area herein specifiedsubject to the conditions herein contained and to the payment of a fee of rupees fifteen per set.

1. Particulars of sets :

(a)

Type.

(b)

Maximum power

2. Date/Dates and hour/hours (Indian Standard Time) of the demonstrations.

3. Probable duration of demonstration (from to.....)

4. Authorized frequencies.

5. Place/Places where demonstrations will be conducted.

Assistant Wireless Adviser to the Govt. of India Ministry of Transport & Communications (Deptts. of Commns. and Civil Aviation) Government of India, New Delhi.

Conditions

1. A demonstration license covers the establishment, maintenance and working of a wireless transmitter set and/or receiver set, other than a broadcast or television receiver set. The licensee or his authorised representative must accompany and remain with apparatus demonstrated.

2. No licensee shall use or permit the apparatus to be used for any commercial purpose, that is to say, for the purpose of gain, or for any purpose, other than bona fide demonstration of a wireless set.

3. No licensee shall use the apparatus in such a manner as to cause interference with the working of any other wireless station, if any such interference is experienced, the licensee shall, on demand by any wireless telegraph station licensed or worked by the Central Government under its authority immediately close down the demonstration.

4. All demonstrations shall be conducted between the hours specified in the licensee except between such hours unless otherwise permitted by the Central Government.

5. The license is not transferable and it shall not be assigned, underlet or otherwise disposed of.

6. The licensee shall indemnify the Central Government against all actions, claims and demands which may be brought or made by any person, body corporate or company in respect of any injury arising from any act licensed or permitted by the licensee.

7. On the occurrence of any public emergency, or in the interest of public safety the license may be cancelled by the Central Govt. at any time either by a specific notice in writing or by means of a notice published in the Gazette of India addressed to all holders of this or all types of wireless licenses. In the event of cancellation no portion of the fee shall be refunded.

8. Demonstrations shall be conducted only on frequencies and emissions specified in the license.

9. The Demonstration licence shall be valid for one State only unless the Central Government grants special permission for the use of the licence in any other State also.

10. A demonstration license shall be valid for a period of three months or of one year as the case may be from the date of issue.

11. Any breach of the conditions shall render the licence liable to be cancelled and in the event of cancellation no portion of the fee shall be refunded.

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